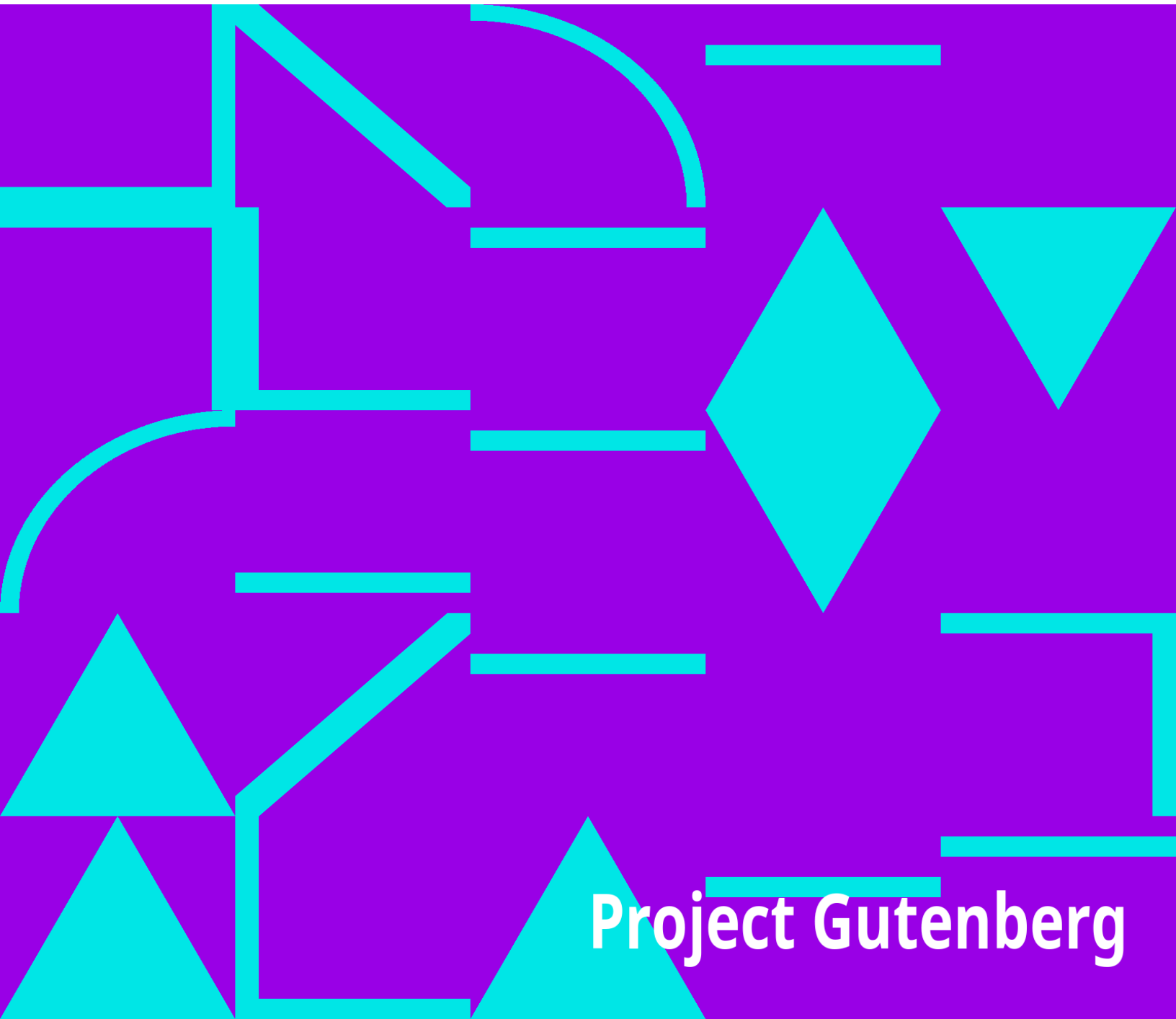


'Mid Pleasures and Palaces

James McKimmey



Project Gutenberg

'Mid Pleasures and Palaces

James McKimmey



Project Gutenberg

The Project Gutenberg eBook of 'Mid Pleasures and Palaces

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: 'Mid Pleasures and Palaces

Author: James McKimmey

Illustrator: Philip B. Parsons

Release date: March 19, 2010 [eBook #31703]

Most recently updated: January 6, 2021

Language: English

Other information and formats: www.gutenberg.org/ebooks/31703

Credits: Produced by Greg Weeks, Stephen Blundell and the Online Distributed Proofreading Team at <https://www.pgdp.net>

*** START OF THE PROJECT GUTENBERG EBOOK 'MID
PLEASURES AND PALACES ***

It was, Kirk thought, like standing in a gully, watching a boulder teeter precariously above you. It might fall at

*any minute, crushing your life out
instantly beneath its weight. Your only
possible defenses are your brain and
voice—but how do you argue with a
boulder which neither sees nor hears?*

'mid pleasures and palaces

By James McKimmey, Jr.

Illustrated by Philip Parsons

THIS PLANET was remote and set apart, and nothing about it had made William Kirk think he might find human life. Yet just beyond, through a thorny bush shaped like an exploding rose, Kirk had seen eyes and nose and a flash of yellow hair that were definitely human.

Kirk poised motionless. He was three miles from the rocket and Leo, who was waiting inside of it. He thought for a moment of how Leo had told him, as they made their landing, that this is the kind of planet where you could go no further. This is the kind of planet that could be the end of twelve years, and you'd better be careful, William, old sport.

Kirk noticed a faint breeze; his palms were wet, and they cooled when the breeze touched them. He placed his palms against his jacket. Damn you, Leo, he thought. Damn your rotten fortune-telling. Kirk was superstitious when he was in space, and the memory of Leo Mason's cool, quiet voice saying "Watch it now, sport. Be careful, be careful ..." seemed now like some certain kiss of fate.

The bush trembled and Kirk's right hand flicked to his holster. His pistol was cold against his fingers and he let it fit loosely in his hand, the barrel half-raised.

The bush shivered again, and then all at once the figure was rising from behind it, a tall wide figure with a very tan face, lined and toughened by the sun. The shoulders, bare like the chest, were massive, yet somehow stretched-looking, as though endless exposure to wind and rain and sun had turned the skin to brown leather.

Kirk had his pistol pointing at the figure's stomach now, and the figure blinked, while the breeze touched and ruffled the long bleached hair.

The figure raised a large hand, palm up, and curled the fingers. "Hello?" he said softly. Kirk was surprised by the word and the polite sound of it.

Kirk remained motionless, pistol pointing. "Who are you?" he said through his teeth.

"Harry," said the figure, as though Kirk surely should know who he was. "I'm Harry, of course."

"Yes?" said Kirk carefully. "Harry?"

The figure nodded. "Harry Loren, don't you know?"

"Oh, yes," Kirk said, his eyes watchful. "Harry Loren." There was something about the man's eyes, Kirk decided. They were deep set and very bright within their sockets. They didn't match the softness of the speech. Harry Loren smiled and showed his yellow teeth. "Who are you?" he asked politely.

"I'm William," Kirk said. It was as though he might be speaking to a frightened child, he thought, who held a sharp knife in his hands. "William Kirk, of course."

Harry Loren nodded apologetically. "Oh, yes. I can't remember everyone. It's been so long. How are you, William?"

Kirk's eyes flickered. "I'm fine."



"That's nice," Harry Loren nodded. His wild hair brushed over his shoulders and reflected its yellowness against the sun. The knife then, the one that Kirk had thought about a moment ago, appeared in the figure's hand. "*Bastard*," Harry Loren hissed, and he was leaping at Kirk, the knife making a sweep toward Kirk's stomach.

Something kept Kirk from squeezing the trigger, and instead he swung his pistol so that it struck the brown, weathered knuckles. The knife flew into a thicket and Loren, screaming, was upon Kirk, reaching for Kirk's neck. Kirk wrenched backward and at the same time swung the barrel of the pistol toward the yellow flying hair. There was a cracking sound, and Harry Loren, brown and wild-looking, crumpled silently before Kirk's feet.

Kirk examined the man, then he reached down and picked up the knife from the thicket. It was crudely hammered out from some kind of alloy, but sharp nevertheless, and it could have been deadly in a hand like Harry Loren's.

Kirk looked again at the yellow-haired man on the ground. He was wearing some kind of ragged cloth about his waist and nothing else. Across his back, Kirk could see, was a curving scar, an inch wide and ten or twelve inches long. It was white and very noticeable against the brown of the man's skin.

Kirk bent down, looking at the scar carefully. It could have been made during a crash of a rocket, but there were, he noticed, fine whiter ridges running along the length of the scar as though they had been made by fine comb-like teeth. A talon, perhaps. Some kind of strange claw. Kirk straightened quickly.

It went through his head that Harry Loren might not be the only animal life on this planet. He tightened his hand on his pistol, stepping backward, his eyes darting.

But he could only pivot slowly, trying to see, to discover, and he was much too slow when he finally saw it. It was only a flash of yellow and brown, making a hissing kind of sound. He felt the ripping along his right arm. The pistol was going out of his hand. And a swirling blackness got in front of his eyes.

WHEN HE AWOKE he saw Harry Loren first, who was sitting up now, silent, motionless, with Kirk's pistol resting in his hands.

To the side of Loren and just a little behind rested a peculiar-looking thing. It was alive because its head, shaped like a cone that had been attached to its neck, kept swaying gently back and forth. The dark blue eyes, spaced back from the smallest end of the cone, were rather small with no lids. The creature's neck was long and thin, a multitude of shades of yellow and brown like the head, and the rest of the body widened out like a funnel and this area was covered with yellow feathers. It had what appeared to be arms and legs, long thin extensions of dark brown with large bony joints. At the end of each of these, Kirk could see a flat claw with rows of tiny comb-like teeth.

Loren reached out and ran a hand softly along the creature's long neck.

Kirk tried to think, testing his muscles without moving, and he remembered then the ripping along his right arm. He looked at the arm and at the way his jacket had been torn away along with the shirt beneath it. He could see the comb-like marking of his skin. The cut was not deep but it bled a little and stung. He tried to move his arm and found that he could.

Kirk looked back to Loren. Loren stroked his hand along the thin neck of the creature. Kirk decided to try:

"That's a nice-looking animal, Harry."

Loren's expression did not change.

Kirk paused. From the looks of the man, Loren had been here a long time, a very long time. It had been a crash, probably. And all the years afterward of loneliness, all the time for the quiet but sure warping of the brain.

He raised a hand quickly, watching Loren's eyes. Loren did not change expressions or move the pistol, but Kirk felt a comb-like claw touching his hand, freezing it to motionless with its razor tips. Kirk looked at the creature. The dark blue eyes were steady. Kirk lowered his hand slowly and the claw was drawn away. The creature's head resumed its gentle swaying, and Loren's hand resumed its stroking.

Kirk licked his lips.

"Where have you been?" Loren said, his voice sudden and hoarse now.

"Where have I been?" Kirk said, tight and motionless.

"Why didn't you come before?"

Kirk considered it. The dancing lights in the man's eyes, the high-strung sound of his voice were things to make you wary and careful. Kirk closed his fingers the slightest bit. "I didn't know you were here."

Loren's lips thinned. "Liar."

Kirk thought he might try a smile, to reassure Loren that he was telling the truth. He decided against it. "How long have you been here, Harry?"

"How would I know?"

Kirk thought of the endless nights and days when time ran together and there was no more separation of one time from another. Today would be tomorrow and tomorrow would be today. No changes. Endless. "Did you crash, Harry?"

"Did you crash, Harry?" Loren mimicked, and for a moment Kirk felt a chill dancing through him as he watched the sarcastic leer of Loren's mouth.

Kirk kept his tone polite, patronizing. "Was there anyone else?"

Loren laughed, a laugh that bounced over the rocks and through the scrubs and bushes.

"Was there, Harry?"

"Oh, yes," Loren said, grinning and showing his yellow teeth. "Six. One, two, three, four, five, six. Would you like to see their graves? I've kept the graves pretty. I know where they are because I dug them."

Loren remained in a half crouch, the fingers of one hand holding the pistol loosely, the other keeping up its monotonous stroking of the animal. His eyes seemed to become vacant for a moment, as though lost in the memory of the digging of six graves. Then they narrowed. "Where have you been?"

Kirk tried to match his answer to the wants of the man. "I came as soon as I could."

"You did?"

"Yes," Kirk said. "I did."

Loren's right hand stopped its stroking and his fingers tightened about the thin long neck of the animal. "Eddie?" he said.

Kirk saw the animal's left claw whipping out. He ducked suddenly, but the claw ripped along his left arm. He tried to roll sideways, and then he lay, half sprawled, looking at the blood welling up from this new set of ripped ridges in his arm. He shifted his eyes to look at the animal, and he was quite certain that he could detect a small mouth fitting around the under side of the funnel-shaped head. It was only a line, but Kirk thought that there was a grinning look to it.

"You didn't come as soon as you could," Loren said, his voice an angry trembling sound.

"I did, Harry," Kirk said, still remaining in his half sprawl. "I really did."

Loren replaced his hand on the neck of the animal, squeezing.

"No, no," Kirk said, and he tried to keep the panic out of his voice. "Harry, I'm telling you the truth!"

LOREN'S MOUTH showed a faint surface of his yellow teeth. He shook his head, slowly, back and forth, his fingers tightening about the animal's neck.

"Harry, listen," Kirk said, watching Loren's squeezing fingers, "it's over now. You don't have to wait any longer. I'll take you back now. I'll take you home!"

Loren froze, staring. "Home?" he said.

"That's right," Kirk said. "That's right, Harry."

"*Home*," Loren breathed, and his eyes were suddenly like a child's, wide and unbelieving.

"The waiting's all over," Kirk said. "You don't have to wait any longer."

"I don't have to wait any longer," Loren repeated softly, and his hand dropped from the neck of the animal.

Kirk watched Loren and the swaying animal. "The rocket's ready," he said.

Loren's eyes were lost in some distant memory. Gradually Kirk could see the eyes turn shiny with tears. "Is Annette waiting?" he asked.

Kirk thought quickly. He knew that what he was going to say shouldn't be said, because he had no right. But he was thinking of his own skin. "Why, yes, Harry," he said slowly. "I imagine Annette *is* waiting."

Loren let a quick breath come through his teeth. "Annette," he whispered. "And Dickie?"

"Dickie?" Kirk said.

"Little Dickie?" Loren said and he held his breath.

"Oh, yes," Kirk lied. "Of course."

"I can't ask about Eddie, because we never had the chance," Loren said, his eyes still lost. "I always told Annette that no kid should ever grow up without a brother, only we never had the chance for Eddie." Loren reached out absently and touched the brown and yellow neck of the creature. "I called this fellow Eddie, though. Do you suppose that was all right? He's not very pretty."

Kirk nodded, looking at the waving, funnel-shaped head of the animal. "That was all right, Harry."

"Does she still braid her hair?" Loren asked, his eyes shiny.

"What?" Kirk said.

"Annette. Does she still braid her hair?"

"Why," Kirk said slowly, feeling his palms going moist. "Why wouldn't she, Harry?"

A faint smile flickered across Loren's lips as he remembered.

Kirk watched one of the creature's claws, out of the corners of his eyes. He opened and closed the fingers of one hand, testing. The claw jerked slightly.

The blood of Kirk's new wound was drying, he knew, because it had been only a surface cut. He wondered how it would be if the thing used its claws with serious intent. Like it must have to make the cut that had been raked into Loren's back. Loren was bending forward now, and Kirk could see the tip end of that scar. Somehow Loren had managed to stay alive and befriend the creature. Eddie. The lidless eyes stared.

Kirk knew that he had to make use of the moment. It could break apart any time, the wildness could return, the unreasoning....

"Listen, Harry," he said, "we ought to get started, you know. There's no use waiting longer."

"Started?" Loren said.

"Of course," Kirk said, trying to keep his voice matter-of-fact. "You're going home."

Loren looked at Kirk and his eyes turned suddenly hard and his mouth lost the faint smile. "I am," he stated flatly.

"Yes," Kirk said. "Of course."

"You're a liar."

"Now, Harry," Kirk said, his eyes flickering to the waiting animal. "I surely wouldn't lie to you."

"You haven't come for me until after all this time, and now you say you surely wouldn't lie to me."

It was like standing in a gully, Kirk thought, watching a boulder teetering above you. It tipped this way and that, and you didn't know when or if it was going to come hurtling down. You waited. But Kirk couldn't wait, he knew. He had to do something.

"Harry, listen. It wasn't easy to find you, don't you see?" He hoped he was making it sound as though all he had done for the last dozen years of exploring was look for Harry Loren. He wished that the damned thing would stop swaying its ugly head back and forth. Loren's hand was inching out toward the yellow and brown neck.

"Look, Harry, these things aren't done in a day. We—"

"A day!" Loren hissed. "*A day!* All this time and you say a *day!*"

"No, I'm sorry," Kirk said quickly. He wished he could shift out of the cramped half-lying position he was in. "I didn't mean a day, Harry. I meant it wasn't easy. We didn't know where you were—" He was talking quickly, whining almost, and he'd never whined before.

Loren's fingers were touching the waving neck.

"We'd better hurry," Kirk said desperately. "Annette's waiting. And Dickie, of course."

Loren blinked.

"You wouldn't want to keep them waiting any longer, not after all this time, Harry."

Loren stroked his fingers slowly down the long neck of the animal.

"I think," Kirk said, almost hoarsely, "now that I really remember it, Annette *was* still wearing her hair braided. I remember that now, Harry. Positively."

Loren froze the motion of his hand and stared at Kirk. His lips trembled, and then suddenly he put his hands in front of his face. He bent forward, and Kirk felt his nerves jumping, watching the man start to cry.

The animal turned its stare away from Kirk for the first time. It looked at Loren and then slowly raised a claw, touching Loren's shoulder carefully. It made a sound then, a peculiar hissing sound, soft, barely audible. There was no danger in it, or menace, only a pitiful sound.

Loren raised his head a little and brought his hands away from his face. Tears had cut through dust and grime and his face was streaked.

"Shall we go, Harry?" Kirk said.

Loren wiped at his eyes, stupidly, without knowing what he was doing. Then he brought his hands down and wiped them across his chest.

"All right," he said. "Let's go." He picked up Kirk's pistol from where he had dropped it on the ground and held it out.

Kirk looked at the gun and at the animal. The claw had been drawn away from Loren's shoulder and again it was poised, ready. "You keep it, Harry," he said.

"Oh, yes. Of course," Loren said. There was a moment of silence as Loren stuck the pistol absently into the waist of his ragged cloth covering, beside the knife. The three of them waited then, Kirk, Loren, and the animal.

"Eddie?" Loren said finally. "Are you ready?"

KIRK FELT himself smiling in the direction of the animal. He remembered when he was a small boy, going by a house where there had been a mongrel with a flat head and large teeth. He had smiled at that animal as he was doing now. The dog had sensed his fear in spite of the smile.

Loren was standing up slowly, and the animal's head swayed in slow circling motions.

"All right?" Loren said.

Kirk glanced at the man, saw the wild, nearly vacant look of the face, the polite tilt of the head. Kirk's palms were wet. Goddamn it, he thought, and he stood up suddenly.

The animal extended a claw, slowly, turning it so that it seemed to wind and circle as it came toward Kirk.

"*Eddie*," Loren said.

The claw came away. Kirk caught his breath.

"Shall we go?" Loren said, his eyes shining.

"Yes," Kirk said. "We'll go, Harry." He turned slowly, so that his back was to Loren and the animal. He thought about the comb-like claws and the scar on Loren's back. He thought about Loren's knife and about the pistol.

He wanted to look back as he walked. He wanted to talk, to hear Loren's answer and so know just where he was. More than anything he wanted to break into a run and get into that rocket and get out of here.

He could see the gleam of the rocket finally, but he didn't look back yet. He kept moving. As he got closer he could see Leo, standing near the base of the ship, tall, leaning carelessly against the silver surface, smoking. He wanted to shout to Leo, to tell him for God's sake to wake up and protect him.

They reached the edge of the clearing and Leo, whose careless body had stiffened, waited motionless, one hand on his pistol. Kirk stopped. "There it is, Harry," he said, not turning around. "There's the ship." He waited, half-closing his eyes, breathing slowly.

There was no sound.

"That's Leo, my friend, Harry," Kirk said, putting his palms flat against his thighs. "Your friend, Harry."

Leo, Kirk could see, was still frozen, his eyes slitted to narrow brightness. Kirk began to step into the clearing. "Hello, there, Leo," he said, his voice a tense, grating sound. "I've brought some friends."

Leo was lifting his pistol out of its holster, inchingly.

"*Friends*," Kirk rasped.

Leo's thin eyes flickered and the pistol slid back into the holster.

Kirk turned around slowly, and he saw that Loren had stopped just inside the clearing. The animal remained beside him, its head making its slow circles. Loren was staring up at the rocket and the sun reflecting from the bright surface, came down and shown on Loren's face, deepening the lines there.

"Leo," Kirk said slowly, "this is Harry Loren and his friend, Eddie. Harry's been here quite a while, waiting for us."

"Oh, yes?" said Leo, still not moving.

"That's right, Leo," Kirk said. "Quite a while. What year was it, Harry?" he said across the clearing. "What year did you crash?"

Loren blinked and there were tears again in his eyes. He reached out slowly, and the animal shifted so that its head touched Loren's hand. "Twenty-four-nineteen."

Kirk put his teeth together. "Twenty-four-nineteen," he said.

Loren nodded slowly, his eyes still upon the rocket.

"Eighteen years," Leo said softly.

"A long time, Leo," Kirk said. He thought of a girl with her hair braided about her head, looking up, while Loren had shot into the depths of sky and space. He thought of a little boy called Dickie, standing there, too, watching a fast-disappearing blackness in the sky. He thought about eighteen years, and the fading of youth. A boy becoming a man. Braided hair becoming gray. Memories fading and minds adjusting. New love, new dedication. A world shifting, a universe shifting.

Kirk looked at Eddie, the animal, real and alive, waiting patiently at the tips of Loren's fingers. "Eddie's been with Harry for a long time," he said.

"Oh?" said Leo quietly.

Loren's hand stroked the brown and yellow head.

"Harry," Kirk said. "We're going to leave now. Are you ready?"

Loren was silent.

"You go up first, will you, Leo?" Kirk said.

Leo looked at him, a faint frown touching his brow, then he began moving up the ladder to the air lock. Kirk waited until Leo had disappeared into the rocket, then he repeated, "We're going to leave now, Harry. Are you ready?"

Loren remained motionless, his hand touching the animal's head. Suddenly he turned then and began moving slowly away through the brush, the brown and yellow creature bobbing beside him with queer rocker-like jumps.

"Goodby, Harry," Kirk said. Finally he turned and climbed up the ladder. When he had gotten into his seat, he said, "Let's go, Leo," and he moved his hands to the controls.

THE ROCKET settled into the quiet motion of its course through space.

"But I don't get it," Leo said. "I really don't. All that time, and then all he has to do is walk a dozen yards and get into the rocket and he's going home. That's all he would have to do."

"Why?" Kirk said.

"Why?" said Leo, frowning.

Kirk nodded, looking at the man. "Why?"

... THE END

Transcriber's Note:



This etext was produced from *If: Worlds of Science Fiction* March 1954. Extensive research did not uncover any evidence that the U.S. copyright on this publication was renewed. Minor spelling and typographical errors have been corrected without note.

*** END OF THE PROJECT GUTENBERG EBOOK 'MID PLEASURES
AND PALACES ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.



[back](#)